

Bihar Outstanding Sportsperson Appointment Rules, 2014

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State of Bihar - Act

Bihar Outstanding Sportsperson Appointment Rules, 2014

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Bihar Outstanding Sportsperson Appointment Rules, 2014

Rule BIHAR-OUTSTANDING-SPORTSPERSON-APPOINTMENT-RULES-2014 of 2014

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Bihar Outstanding Sportsperson Appointment Rules, 2014

Published vide Notification No. 9/Ni -18-01/2014-GAD-16646, dated 04.12.2014

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No. 9/Ni -18-01/2014-GAD-16646 - In exercise of the powers conferred by proviso to Article 309 of the Constitution of India, the Governor of Bihar makes the following rules for appointment of outstanding sportsperson -

1.

Short title, extent and commencement.

- (i) These Rules may be called as the Bihar Outstanding Sportsperson Appointment Rules, 2014

(ii)

It shall extend to the whole state of Bihar;

(iii)

It shall come into force at once.

2.

Definitions.

- In these rules unless the context otherwise requires:-

(i)

'Rule 'Appointing Authority' s' means the Bihar Outstanding Sportsperson Appointment Rules, 2014;

(ii)

'Government' means the Government of Bihar;

(iii)

'Year' means the financial year i.e. from 1st April to 31st March of next year;

(iv)

'Appointing Authority' means Appointing authority as defined in the concerned Service/Cadre Rules;

(v)

'Selected sports discipline' means Sports discipline of the sports competition as described in the schedule 1. Time to time, necessary amendments in the said sports disciplines may be done by the State Government on the recommendation of Arts, Culture and Youth department of Bihar, Patna;

(vi)

'Competition' means competitions described in schedule 1. Time to time, necessary amendments may be done in the said list by the State Government;

(vii)

'Personal Competition' means such competitions in which the achievement has been due to the personal efforts;

(viii)

'Team Competition' means such competition in which achievement has been due to efforts of more than one sportsperson as a sports team;

(ix)

'Representation of State' means the sportsperson representing the state of Bihar.

(x)

'Representation of Universities' means sportsperson representing the recognised university recognized in the State of Bihar.

3.

Qualifications.

- Under these rules the sportsperson having the following qualifications shall be suitable for appointment in the category of outstanding sportsperson under the services of the state government, who

(i)

is the resident of Bihar State ,and

(ii)

(a)

has obtained first/second/third/ other prize or has participated in the said competition as a player representing India in the games competition of the sports discipline in category A1 as described in schedule 1 of the Rules,

(b)

has obtained first/second/third/other prize or has participated as a player in the said competitions representing India in the games competition of the sports disciplines in the category A2 as described in the schedule 1 of the Rules, or

(c)

has obtained first/second/third/other prize or has participated as a player in the said competitions representing India in the games/ competition of the sports disciplines in the category A3 as described in the schedule 1 of the Rules, or

(d)

has obtained first/second/third prize or has participated as a player in three consecutive years as state representative in the games/ competitions of the sports disciplines in category A4, A5 as described in schedule 1 of the Rules, or

(e)

has obtained first/second/third prize in games/competitions of the sports disciplines in category A6, A7 and A8 as described in schedule 1 of the Rules, and

(iii)

has the minimum educational qualification or equivalent to graduation for appointment in group 'B', Intermediate for appointment in group 'C' and Matriculation for appointment in group 'D'.

4.

Selection procedure.

- (i) Appointment in selected sports discipline of the outstanding sports persons shall be done within 10% of total strength (basic grade) of any cadre.

(ii)

Provisions of the horizontal reservation (quota under quota) shall be applied in the appointment of outstanding sports persons. The selected sports persons shall be counted in the same category of reservation from which category they belong, i.e. selected sportsperson of the reserved category shall be counted in the relevant reservation category and those of unreserved category shall be counted under unreserved category.

(iii)

On the basis of the achievement in the selected sports disciplines and prescribed educational qualification appointment shall be made in the Bihar Secretariat Clerical service, Collectorate regional Clerical cadre and on the other posts of group 'C' and 'D' under the state government. In a case of obtaining First/Second/Third prize in games competition of A-1, A-2 and A-3 described in Annexure-1 and having required educational qualification by a sportsperson, appointment may be made on Group B posts also, but sanction of State Government shall be necessary for such appointments.

(iv)

Advertisement shall be published by the General Administration Department after obtaining vacancies from all the departments/offices.

(v)

After scrutiny of the applications received on the basis of the advertisement published by the General Administration Department, merit list of candidates shall be prepared by the selection committee constituted by the state government on the basis of interview, achievement of the candidate in the selected sports discipline and prescribed educational qualification.

(vi)

For selection of outstanding sports persons, the following shall be the Chairman/members of the selection committee constituted by the state government:-

(a)

Principal Secretary/Secretary, General
Administration Department

- Chairman

(b)

Secretary, Art, Culture and youth Department

- Member

(c)

Director General, Bihar Sports Authority

- Member

(d)

Sports specialist nominated by the Art, Culture
and youth Department

- Member

(e)

An officer not below the rank of Deputy
Secretary belonging to SC/ST nominated by the General
Administration Department

- Member

(vii)

For the appointment of outstanding sports persons having prescribed educational qualification and sports qualification in the selected sports discipline, merit list shall be prepared in the following manner:-

(a)

Sportsperson having obtained first/second/third/other prize or having participated as a player in those competition representing India in the sports competition described in A-1 and A-2 of schedule-1 shall be placed at the top of the merit list.

(b)

Merit list of sports persons of sports discipline of sports competition described in A-3, A-4, A-5, A-6, A-7 and A-8 of schedule-1, shall be prepared on the basis of total marks obtained on the basis of marks determined in schedule-2.

(viii)

In case of having obtained several achievements by a sports persons, selection shall be made on the basis of his/her best three achievements during the prior five years from the date of the publication of the advertisement.

(ix)

In case of two or more than two sports persons having the same marks on the basis of the said sports achievements, the following priority shall be adopted for selection:-

(a)

Priority shall be given to the concerned sports persons making new record,

(b)

The personal achievement shall be treated as larger against the team achievement ,

(c)

Priority shall be given to the high level competition described serially in schedule-1.

(d)

The achievement of current year shall be given priority,

(e)

Qualification/marks remaining the same despite adopting the above said process, seniority shall be given to the date of birth,

(f)

Despite adopting the processes of para 4(ix)(a)(b)(c)(d)(e) If qualifications/marks of two or more than two sports persons remain the same then selection shall be made on the basis of the percentage of marks of the prescribed educational qualification.

(x)

In case of all the members of a Team qualified in Team Event, apply for appointment, selection procedure shall be adopted as described in the above mentioned para 4(ix).

(xi)

Not more than five outstanding sports persons in any one sports disciplines shall be appointed in one year. All recognized sports disciplines organized for physically handicapped sports persons shall be treated as one sports discipline collectively for the purpose of appointment and appointment shall be made on maximum of three percent of the total vacancy.

(xii)

Provisional merit list prepared on the basis of achievements in different competition as per the prescribed marks of the category of competitions in schedule 2 of the rules, shall be published. Any objection may be submitted to the Principal Secretary/Secretary of the General Administration Department within 15 days of the publication of the merit list. Received objections shall be examined by the committee constituted under para 4(vi) and the final merit list of every category and post shall be issued after the scrutiny, on the basis of which appointment shall be made on seniority basis. The final merit list shall be valid for one year from date of its publication.

(xiii)

Merit list prepared by the selection committee for appointment of outstanding sports persons shall be sent to the General Administration Department. After verification of the certificates, list of the outstanding sports persons shall be sent by the General Administration Department to the concerned appointing authority on the basis of the vacancies as per their requisitions.

5.

Age limit.

- Provisions of the age limit for appointment as prescribed by the state government (General Administration Department)

shall be applicable.

6.

Service Conditions.

- Service conditions for the Bihar Government Servants shall be applicable to the outstanding sports persons appointed under the provisions of the Rules.

7.

Repeal and Savings.

- Letter no 3792 dated 14.03.1973, resolution no 1086 dated 20.01.1979 and all directions regarding appointment of outstanding sports persons in "The Bihar Outstanding Sports persons Appointment Rules, 2009 (as amended up to year 2012) shall be deemed to be repealed.

Notwithstanding such repeal, anything done or any action taken under the said circular/resolution/rules/instructions prior to coming into force of these rules shall have no adverse effect.

8.

Miscellaneous.

- Notwithstanding contained anything contrary to these Rules in any other Rules, provision of these Rules shall have overriding effect.

9.

Removal of difficulties.

- The Government may, from time to time, issue such general or special directions as may be necessary to remove difficulties in the operation of any of the provisions of these Rules.

Schedule 1

1. A1

(i)

Olympic Games

(ii)

World cup

2. A2

(i)

Commonwealth Games

(ii)

World University Games

(iii)

Asian Games

(iv)

Afro Asian Games

(v)

Asian Championships

3. A3

SAF Games

4. A4

National Games

5. A5

National Senior Championships

6. A6

All India Inter University Championships/Tournament

7. A7

National Junior Championships

8. A8

Paralympic/International/National level sports competitions for the Disabled sports persons

Schedule 2

Sl. No.

Category of games/competitions

Achievement

Marks

1

A3

First Prize

3000

Second Prize

2900

Third Prize

2800

Other Prize/Participation in competition

2500

2

A4

First Prize

2800

Second Prize

2700

Third Prize

2600

Other Prize/Participation in competition

2100

3

A5

First Prize

2600

Second Prize

2500

Third Prize

2400

Other Prize/Participation in competition

1800

4

A6

First Prize

800

Second Prize

700

Third Prize

600

5

A7

First Prize

400

Second Prize

375

Third Prize

350

6

A8

First Prize

400

Second Prize

375

Third Prize

350

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